

The Jatropha Seeds Grading and Marking Rules, 2011

Source: <https://indiankanoon.org/doc/173721963/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Jatropha Seeds Grading and Marking Rules, 2011

UNION OF INDIA

India

The Jatropha Seeds Grading and Marking Rules, 2011

Rule THE-JATROPHA-SEEDS-GRADING-AND-MARKING-RULES-2011 of 2011

Published on 22 February 2011

Commenced on 22 February 2011

[This is the version of this document from 22 February 2011.]

[Note: The original publication document is not available and this content could not be verified.]

The Jatropha Seeds Grading and Marking Rules, 2011

Published vide Notification No. G.S.A. 105(E), New Delhi, dated 22nd February, 2011

2054.

MINISTRY OF AGRICULTURE

(Department of Agriculture and Co-operation)

NOTIFICATION

G.S.A. 105(E), New Delhi, the 22nd February, 2011.-Whereas the draft of Jatropha seeds Grading and Marking Rules, 2010, was published as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification number G.S.R.781 (E) dated the 28th September, 2010 inviting objections and suggestions from all persons likely to be affected thereby within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the

public;

And whereas copies of the said notification were made available to the public on the 5th October, 2010;

And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered.

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), the Central Government hereby makes the following rules, namely:

RULES

1.

Short title, application and commencement.

(1)

These rules may be called Jatropha Seeds Grading and Marking Rules, 2011.

(2)

They shall apply to Jatropha seeds obtained from Jatropha capsule of plant Jatropha curcas L. of family Euphorbiaceae.

(3)

They shall come into force on the date of their final publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(b)

"authorised packer" means a person or a body of persons who has been granted a certificate of authorisation to grade and mark Jatropha seeds in accordance with the grade standards and procedure specified under these rules;

(c)

"certificate of authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, authorising a person or a body of persons to grade and mark Jatropha seeds with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"Schedule" means a Schedule appended to these rules.

(2)

Words and expression used in these rules and not defined but defined in the Agricultural Produce (Grading and Marking) Act, 1937 shall have the same meanings as are assigned to them under that Act.

3.

Grade designations of Jatropha.

-The Grade designations to indicate the quality of Jatropha seeds shall be as set out in column I of table to the Schedule II.

4.

Quality.

-For the purpose of these rules, the quality of Jatropha seeds shall be as given in Schedule II.

5.

Grade designation mark.

-The grade designation mark shall consist of "AGMARK inSignia" consisting of a design incorporating the certificate of authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as is set out in Schedule-I.

6.

Method of packing.

(1)

Jatropha seeds shall be packed in gunny bags or jute bags, polywoven bags, poly pouches, cloth bags, High Density

Poly Ethylene (HOPE) laminated paper bags, new or un-mended B-Twill bags or any other safe packing material with suitable inner lining as approved by the Agricultural Marketing Adviser to the Government of India.

(2)

The packing material shall be clean, sound, free from insect and fungal infestation and should not have odour.

(3)

Jatropha seeds shall be packed in pack sizes as per the instructions issued by the Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container With complete details thereon along with grade designation mark.

(5)

Each package shall contain Jatropha seeds of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed and the mouth of the bag shall be stitched to disallow sweating or spilling.

7.

Method of Marking

:- (1) The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely:

(a)

name and address of the packer;

(b)

place of packing;

(c)

Lot or batch number;

(d)

date of packing;

(e)

variety or trade name; (optional)

(f)

crop year (optional)

(g)

grade;

(h)

net weight;

(i)

maximum retail Price (inclusive of all taxes);

(j)

best before _____ month _____ year;

(k)

any other particulars as may be specified by the Agricultural Marketing Adviser

(3)

The ink used for marking on packages shall be of such quality which shall not contaminate the Jatropha seeds.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance

with these rules.

8.

Special conditions of certificate of authorisation.

(1)

In addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules every authorised packer shall follow all instructions specified by Agricultural Marketing Adviser from time to time.

(2)

The authorised packer shall either set up his own laboratory as per norms or have access to an approved State Grading Laboratory or cooperative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, for testing the quality of Jatropha Seeds.

(3)

The premises shall be maintained in perfect hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases.

(4)

The premises shall have adequate storage facilities with pucca floor and free from rodent and insect infestation.

(5)

The authorised packer and the approved chemist shall observe all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or any other officer authorised by him in this behalf from time to time.

I

(See rule 5)

(Design of Agmark insignia)

Name of the Commodity

Grade

II

(see rule 3 and 4)

GRADE DESIGNATION AND QUALITY OF JATROPHA SEED (Jatropha curcas I)

1. Jatropha Seed shall be obtained from clean, healthy and mature capsule of the plant Jatropha curcas I. of family Euphorbiaceae.

2. Minimum Requirements:

(i)

Jatropha Seeds shall be:

(a)

wholesome, mature, clean and dried;

(b)

of characteristic size, shape and colour,

(c)

free from living and dead insects, insect fragments, mites and larvae;

(d)

free from fungus infestation, mould growth;

(e)

free from added artificial colouring matter;

(f)

free from rodent hair and excreta;

(g)

free from other toxic seeds and weeds;

(h)

free from rancidity and mustiness;

(ii)

the odour and flavour of the seeds when grind and moistened shall be fresh.

3. CRITERIA FOR GRADE DESIGNATION.-The Criteria for Grade designation shall be as per the table given below:

Table

Grade

designation

Extraneous

Matter

Broken seeds,

percent by mass (max.)

Bulk density

(No. of seeds/kg) (max.)

Insect Infested

seeds, percent by mass (max.)

Moisture,

percent by mass (max.)

Oil percent in

seeds by mass (min.)

Damaged and

discoloured seeds, % by mass (max.)

Acid Value of

the extracted oil (max.)

Organic Percent

by mass (max.)

Inorganic,

Percent by mass (max.)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Special

1.0

0.5

1.0

2000

0.5

8.0

33.0

2.0

10.0

Standard

1.5

1.0

2.0

2400

1.0

9.0

30.0

4.0

15.0

General

2.5

2.5

4.0

2800

2.5

10.0

27.0

7.0

25.0

Explanation. -For the purpose of this table,

(a)

Extraneous matter, means

(i)

"Organic matter" consisting of leaves, twigs, stems, organic matters other than the Jatropha seeds;

(ii)

"Inorganic matter" consists of metallic pieces, sand, gravel, dirt, pebbles, stones, lumps of earth, clay and mud, animal filth;

(b)

"Insect infected seeds" means seeds which are wholly or partially bored or eaten by weevils;

(c)

"Whole seeds" mean mature, sound and clean seeds;

(d)

"Damaged seeds" means kernels or pieces of kernels that are sprouted or internally damaged as a result of heat, microbe and moisture.

4. Other requirement:

(i)

the condition of the Jatropha Seeds shall be as to enable it,

(a)

to withstand transport and handling; and

(b)

to arrive in satisfactory condition at the place of destination.

(ii)

Jatropha Seeds shall be stored in appropriate cool and dry place maintained in a clean and hygienic condition.

Related AI tags, queries and research notes

Translation